

JOHN A. VOS, TRUSTEE OF THE VOS FAMILY TRUST

DATED 8/31/2011 v EVANS

23CV46959

**DEFENDANTS' MOTION TO SET ASIDE DEFAULT;
PLAINTIFFS' MOTION FOR INTERLOCUTORY JUDGMENT OF
PARTITION AND APPOINTMENT OF REFEREE**

This action seeks partition of the real property located at 10777 Walker Trail, Lost City, CA 95222, Calaveras County Assessor's Parcel Numbers 050-008-053-000, 050-021-018-000, 050-007-008-000, 050-007-009-000, 050-007-010-000, 050-007-011-000 (the "Property"). Defendants move to set aside their defaults; Plaintiffs seek an interlocutory judgment of partition and appointment of a referee.

DEFENDANT'S MOTION TO SET ASIDE DEFAULT:

Defendants seek to set aside their defaults pursuant to California Code of Civil Procedure ("CCP") Sections 473 (b) and 473.5 based on inadvertence, mistake, surprise, and/or excusable neglect, citing communications between counsel that reference ongoing settlement discussions and statements that are open to interpretation as reflecting a nascent agreement to set aside defaults if further proceedings proved necessary.

CCP provisions authorize the court to set aside a default or default judgment on such terms as may be just and to allow the defendant to defend the action on a finding that the defendant's motion to set aside the default or default judgment was made within the period permitted by CCP § 473.5(a), and that defendant's lack of actual notice of the action in time to defend was not caused by his or her avoidance of service of summons or inexcusable neglect. Here, the present motion was filed roughly 4 ½ months after the defaults were entered, therefore in a timely manner. The Court may, on any just terms, vacate the entry of default that resulted from mistake, inadvertence, surprise, or neglect, if that error was excusable. (*Zemora v Clayborn Contracting Group* (2002) 28 Cal 4th 249, 258.) Further, the relief becomes mandatory when attributable to an attorney's mistake, inadvertence, surprise, or neglect. (*Lorenz v Commercial Acceptance Insurance* (1995) 40 CalApp4th 981, 989-990; the party is entitled to this relief even if the attorney's actions were inexcusable (*Rodriguez v Brill* (2015) 234 CalApp715, 723). Here, attorney Robert Enos' declaration accepts responsibility and provides that his actions were excusable.

Based on the foregoing, Defendants' Motion to Set Aside Default is **GRANTED** and the proposed Answer and Cross-Complaint are ordered filed.

PLAINTIFFS' MOTION FOR INTERLOCUTORY JUDGMENT AND APPOINTMENT OF REFEREE:

This motion seeks to resolve the co-ownership dispute by entering an interlocutory judgment of partition and appointing attorney Matthew L. Taylor, Esq. as referee to market and partition the Property.

In support of the motion, plaintiffs cite various subsections of CCP Sections 872. Defendants' opposition can be largely characterized as equitable in nature.

The Court is persuaded – as defendants concede – that partition will inevitably occur to resolve this dispute. Additionally, the Court notes no argument has been raised in opposition to plaintiffs' proposed ownership interests based upon title, or to the qualifications and unbiased nature of proposed referee Matthew Taylor, Esq. The substantive opposition addresses the manner of partition.

The Court is satisfied that an interlocutory judgment of partition, including determination of ownership, and appointment of a referee, is appropriate, while establishing further proceedings to determine the manner of partition and valuation, as well as attorney's fees and costs.

Based on the foregoing, Plaintiffs' Motion for Interlocutory Judgment is **Mostly GRANTED**. The Court Orders that the Property shall be partitioned, the Ownership Interests are as detailed at page 8, lines 4 through 14 of Plaintiffs' Memorandum of Points and Authorities contained in the Motion, and attorney Matthew L. Taylor is appointed as referee. The manner of partition and valuation of the property, as well as attorney's fees and costs associated with the referee's efforts, will be determined at a later date based upon a properly noticed motion to affirm the referee's report and in consideration of any opposition thereto.

The Clerk shall provide notice of these Rulings to the parties forthwith. Defendants to submit a formal order pursuant to Rule of Court 3.1312 in conformity with this ruling on the Motion to Set Aside Default; Plaintiffs to submit a formal order pursuant to Rule of Court 3.1312 in conformity with this ruling on the Motion for Interlocutory Judgment.